

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Team # 3	CCRB Case #: 201401347	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 01/14/2014 5:48 PM	Location of Incident: In front of 2938 Avenue W in Brooklyn	18 Mo. SOL 7/14/2015	Precinct: 61
Date/Time CV Reported Wed, 01/15/2014 2:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/15/2014 2:11 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Tonica Corlette	19352	933977	PSA 1
2. SGT Brendan Cassidy	00488	921204	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POF Tonica Corlette	Abuse: PO Tonica Corlette stopped § 87(2)(b)	A . Unsubstantiated
B . SGT Brendan Cassidy	Abuse: Sgt. Brendan Cassidy stopped § 87(2)(b)	B . Unsubstantiated
C . SGT Brendan Cassidy	Force: Sgt. Brendan Cassidy used physical force against § 87(2)(b)	C . Unsubstantiated
D . SGT Brendan Cassidy	Force: Sgt. Brendan Cassidy restricted § 87(2)(b) s breathing.	D . Unfounded
E . POF Tonica Corlette	Abuse: PO Tonica Corlette frisked § 87(2)(b)	E . Unsubstantiated
F . POF Tonica Corlette	Abuse: PO Tonica Corlette searched § 87(2)(b)	F . Unsubstantiated
G . POF Tonica Corlette	Abuse: PO Tonica Corlette issued a summons to § 87(2)(b)	G . Substantiated
H . SGT Brendan Cassidy	Abuse: Sgt. Brendan Cassidy failed to supervise the issuance of a summons to § 87(2)(b)	H . Substantiated

Case Summary

On January 15, 2014, § 87(2)(b) filed this complaint with the CCRB via telephone.

On January 14, 2014, at approximately 5:48 p.m., § 87(2)(b) was issued a summons for disorderly conduct by PO Tonica Corlette of Police Service Area 1. The following allegations resulted:

- **Allegation A: Abuse of Authority- Sgt. Brendan Cassidy stopped** § 87(2)(b)
- **Allegation B: Abuse of Authority- PO Tonica Corlette stopped** § 87(2)(b)
§ 87(2)(g) It is therefore recommended that Allegations A and B be closed as *unsubstantiated*.
- **Allegation C: Force- Sgt. Brendan Cassidy used physical force against** § 87(2)(b)
§ 87(2)(g) It is therefore recommended that Allegation C be closed as *unsubstantiated*.
- **Allegation D: Force- Sgt. Brendan Cassidy restricted** § 87(2)(b) **s breathing.**
§ 87(2)(g) It is therefore recommended that Allegation D be closed as *unfounded*.
- **Allegation E: Abuse of Authority- PO Tonica Corlette frisked of** § 87(2)(b)
- **Allegation F: Abuse of Authority- PO Tonica Corlette searched** § 87(2)(b)
§ 87(2)(g) It is therefore recommended that Allegations E and F be closed as *unsubstantiated*.
- **Allegation G: Abuse of Authority- PO Tonica Corlette issued a summons to** § 87(2)(b)
- **Allegation H: Abuse of Authority- Sgt. Brendan Cassidy failed to supervise the issuance of a summons to** § 87(2)(b)
§ 87(2)(g) It is therefore recommended that Allegation G and H be closed as *substantiated*.

§ 87(2)(g)

§ 87(2)(b)

declined mediation and opted for an investigation.

Results of the Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a black male with black hair and brown eyes was § 87(2)(b) on the date of the incident. § 87(2)(b)
- § 87(2)(b)

CCRB Statement

On February 11, 2014, § 87(2)(b) was interviewed at the CCRB by Investigator Otero. His statement was generally consistent with his original phone statement from January 15, 2014 and is summarized below (Encl. 9A-9B). On January 13, 2015, Investigator Tuminello contacted § 87(2)(b) via telephone and asked him several follow-up questions. § 87(2)(g)

On January 14, 2014, at approximately 5:48 p.m., PO Tonica Corlette and Sgt. Brendan Cassidy of PSA 1 approached § 87(2)(b) as he stood in front of 2938 Avenue W in Brooklyn, listening to music through a portable speaker. § 87(2)(b) was standing alone at the time. § 87(2)(b) observed both officers' names from their shield. PO Corlette requested § 87(2)(b)'s identification and asked him if he lived in the building he was standing in front of. § 87(2)(b) refused to provide his identification and stated, "I am not giving you my ID, I know the law and I did not commit a crime." § 87(2)(b) was then thrown up against the building's brick wall by Sgt. Cassidy. He stated that Sgt. Cassidy grabbed his arms and back from behind and threw him towards the wall. The front of § 87(2)(b)'s body was pushed towards the wall. PO Corlette then began to go through § 87(2)(b)'s coat pockets. § 87(2)(b) attempted to take his wallet out of his pants' pocket and held it high above his head. Sgt. Cassidy then applied his forearm to the left side of § 87(2)(b)'s neck and slammed him face first into a brick wall. § 87(2)(b) stated that his face hit the wall. § 87(2)(b) stated that the officers believed that he had pulled out a gun. Sgt. Cassidy then continued to press § 87(2)(b) up against the wall with his forearm. During a January 13, 2015 phone interview, § 87(2)(b) stated that Sgt. Cassidy's forearm was pressed up against the back of his neck for approximately ten minutes. He stated that he did have a little trouble breathing but he asked Sgt. Cassidy to ease off of his neck and he applied less pressure. § 87(2)(b) was then placed in handcuffs by Sgt. Cassidy. After being placed in handcuffs, Sgt. Cassidy bent § 87(2)(b)'s arm up. He did not recall which arm this was. PO Corlette then went through § 87(2)(b)'s pants' pockets and threw the items inside of his pockets onto the ground. Sgt. Cassidy explained to § 87(2)(b) that he placed him in handcuffs for the officers' safety. He also stated that a shooting happened earlier and he was trying to protect himself and his partner from the possibility of a gun.

A warrant check for § 87(2)(b) produced negative results. He stated that the officers used a cell phone to conduct the warrant check. They both told him that he was "lucky" because he did not have a warrant. § 87(2)(b) was upset about the incident and was "hyped-up." He called PO Corlette a "stupid bitch" because his items had been thrown on the floor, he was beat up and felt violated. He also stated that he asked the officers numerous times if he was being arrested and they did not answer.

PO Corlette then stated that she was going to issue § 87(2)(b) a summons for being disrespectful. PO Corlette ran to the police vehicle to get the summons with a smile on her face. § 87(2)(b) asked the officers if they could take off the handcuffs and they refused. § 87(2)(b) then stated, "Hurry up and take these motherfucking cuffs off of me. Hurry up and do you're fucking job and take these cuffs off of me." § 87(2)(b) also stated that he told PO Corlette, "You fucking look like you like girls you ugly bitch."

The incident lasted approximately 10 to 15 minutes and he was issued a summons for disorderly conduct (P.L. 240.20(3)). § 87(2)(b) also stated that after he received the summons, the officers told

him that he smelled like marijuana. § 87(2)(b) stated that a crowd did not gather around the incident location; however, an old lady that he did not know told PO Corlette after the incident ended that she was disrespectful. § 87(2)(b) stated that he received a bruise on his chin from being slammed into the wall by Sgt. Cassidy; however, he did not seek medical attention. § 87(2)(b) stated that his friend § 87(2)(b) may have witnessed part of the incident when he went to walk out of the building.

Attempts to Contact Civilians

Between October 29, 2014 and November 24, 2014, the undersigned investigator contacted § 87(2)(b) three times via telephone in regards to information pertaining to § 87(2)(b) § 87(2)(b). § 87(2)(b) stated each time that § 87(2)(b) does not carry any type of phone and was currently in the process of moving. He did not know the specific location that § 87(2)(b) was moving too. A Lexis Nexis search conducted on October 29, 2014 indicated three-thousand results for the name § 87(2)(b) § 87(2)(b).

NYPD Statements

Subject Officer: PO TONICA CORLETTE

- PO Tonica Corlette, a black female with black hair and brown eyes was § 87(2)(b) on the date of the incident. § 87(2)(b)
- On January 14, 2014, PO Corlette worked in uniform from 3:00 p.m. until 11:35 p.m. PO Corlette was assigned as the sergeant's operator in marked patrol car 9119 with Sgt. Brendan Cassidy.

Memo Book

On January 14, 2014, at approximately 5:45 p.m., PO Corlette received a report of a crime in progress regarding a narcotics sale. At 5:46 p.m., an unidentified woman said, "You just missed him," regarding the narcotics being sold. § 87(2)(b) was stopped, asked for identification and walked away. § 87(2)(b) reached in his pocket and he was grabbed for the officers' safety (Encl. 10A-10D).

Summons

The summons § 87(2)(b) indicates that at approximately 5:48 p.m., in front of 2938 Avenue W in Brooklyn, PO Corlette observed § 87(2)(b) causing public inconvenience in a public place by using obscene language and also acting loud and boisterous. § 87(2)(b) stated in the officer's presence, "Fuck the police, you are a bitch" and "I bet you can't get a man that's why you are bothering me." § 87(2)(b) was charged with violating NYS Penal Law Section 240.20(3) (Encl. 11A).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(a) 160.50

Stop, Question and Frisk Report § 87(2)(b)

The report indicates that on January 14, 2014, at approximately 5:48 p.m., § 87(2)(b) was stopped for being suspected of criminal possession of a weapon, a suspicious bulge, and furtive movements. § 87(2)(b) was handcuffed because it appeared that he reached for a suspected weapon. § 87(2)(b) was also frisked because of inappropriate attire (possibly concealing a weapon), refusal to

comply with officer's directions, and furtive movements. § 87(2)(b) was searched because a hard object was felt during the frisk. Event summary number D14011416884 was filled out in regards to the incident. The duration of the stop was approximately one minute and summons number § 87(2)(b) was issued to § 87(2)(b) (Encl. 12A-12C).

CCRB Statement

On May 16, 2014, PO Corlette was interviewed at the CCRB (Encl. 13A-13C). Her testimony is summarized below:

On January 14, 2014, Sgt. Cassidy received a report of a narcotics sale at 2938 Avenue W in Brooklyn, which is part of the Sheepshead Bay Housing Development. The call came through the 311 system to their command. PO Corlette and Sgt. Cassidy arrived at the location § 87(2)(f)

§ 87(2)(b) The woman provided the color of the jacket that the suspect was wearing, which PO Corlette did not recall at the time of her interview, and stated that he was carrying a long speaker where he may have the narcotics hidden.

PO Corlette and Sgt. Cassidy approached the building and observed approximately seven individuals inside the lobby of the building. Everyone with the exception of one man exited the lobby and travelled further into the building. The individual who remained in the lobby was identified as § 87(2)(b). § 87(2)(b) then exited the building lobby wearing the same color jacket described by the unidentified woman. PO Corlette asked § 87(2)(b) whether or not he lived at the location or if he was visiting anyone. § 87(2)(b) immediately became combative, refused to provide his identification and stated, "Stop messing with me." § 87(2)(b) called PO Corlette a "bitch" and said that she could not find a man. PO Corlette then requested § 87(2)(b)'s identification because he was cursing and acting belligerent. She stated to him that she was going to issue him a summons for disorderly conduct.

§ 87(2)(b) walked away without complying with the request for his identification. While walking away, § 87(2)(b) turned his back away from the officers, facing them and walking backwards as he reached into his jacket pocket. PO Corlette and Sgt. Cassidy each grabbed one of § 87(2)(b)'s arms to prevent him from removing anything from his pockets and placed him against the wall. PO Corlette stated that the officers restrained § 87(2)(b) for their safety. She also stated that the fact that it was winter time, § 87(2)(b) was wearing a winter jacket, and they could not tell if he was concealing a weapon each played a factor in placing him up against the wall. PO Corlette stated that § 87(2)(b) was non-complaint and pulled his arms away from the officers and moved his hands towards his body. PO Corlette denied that she pushed § 87(2)(b) into the wall to injure him or cause pain. She said that § 87(2)(b) did not express that he had been injured. A friend of § 87(2)(b) exited the building and he told him to record the incident because he has other complaints against officers and wanted to add this incident as a complaint. § 87(2)(b) continued his loud and boisterous behavior. PO Corlette did not mention that she observed this individual record the incident.

PO Corlette frisked § 87(2)(b) and felt a hard object under his jacket near his chest. PO Corlette did not see any bulges in § 87(2)(b)'s clothing because it was cold and his clothing was bulky; however, she indicated that she feared that he could have been armed based on his combative demeanor and body movement. PO Corlette removed the object and saw that it was a speaker box which was approximately two feet in length. PO Corlette also removed a water or soda bottle from the opposite side of § 87(2)(b)'s jacket. § 87(2)(b) was placed in handcuffs and he said that his identification was in his pocket.

PO Corlette smelled marijuana on § 87(2)(b)'s breath and his jacket, but she did not locate any marijuana. PO Corlette said Sgt. Cassidy possibly told § 87(2)(b) that a shooting had occurred when she went to the patrol car to check § 87(2)(b)'s name for warrants; however, she did not hear that conversation. § 87(2)(f)

§ 87(2)(f)

PO Corlette stated that she did not open the speaker box. § 87(2)(b) did not have any outstanding warrants and he was released with a disorderly conduct summons for his loud and boisterous behavior.

Subject Officer: SERGEANT BRENDAN CASSIDY

- *Sgt. Cassidy, a white male with gray balding hair and green eyes was § 87(2)(b) at the time of the incident.* § 87(2)(b)
- *On January 14, 2014, Sgt. Cassidy was assigned as the patrol supervisor from 4 p.m. to midnight on January 15, 2014. He was in uniform and was assigned to a marked vehicle with PO Corlette.*

Memo Book

At approximately 5:34 p.m., received information regarding a complaint report that indicated drugs were being sold in the lobby of 2938 Avenue W in Brooklyn. At 5:45 p.m., § 87(2)(b) was stopped and at 5:55 p.m., § 87(2)(b) was issued a summons by PO Corlette (Encl. 14A-14C).

CCRB Statement

On May 22, 2014, Sgt. Cassidy was interviewed at the CCRB (Encl. 15A-15F). § 87(2)(g)
§ 87(2)(b) On January 22, 2015, Sgt. Cassidy was re-interviewed at the CCRB after § 87(2)(b) presented new allegations during his January 13, 2015 phone call. Both of his statements are summarized below:

On January 14, 2014, Sgt Cassidy and PO Corlette responded to 2938 Avenue W in Brooklyn.

§ 87(2)(f)

§ 87(2)(b) Sgt. Cassidy did not recall whether he had been given a description of § 87(2)(b) and he did not recall what § 87(2)(b) had been wearing that day. Sgt. Cassidy approached § 87(2)(b) and requested his identification. § 87(2)(b) motioned toward his waistband with one hand similarly to how people reach for a gun at a firing range. Sgt. Cassidy and PO Corlette instinctively grabbed § 87(2)(b)'s hands without any discussion and placed him against the scaffold to keep him still. Sgt. Cassidy stated that he did not intend to injure § 87(2)(b) by putting him up against the scaffold and at no point did he apply his forearm to § 87(2)(b)'s neck. Sgt. Cassidy also explained that no physical contact was made with § 87(2)(b)'s neck at any point during the interaction. He also stated that § 87(2)(b) did not complain of any injuries and there were no visible injuries on § 87(2)(b). Sgt. Cassidy did not observe § 87(2)(b)'s neck make contact with the scaffold and stated that he never complained about his breathing being restricted. Sgt. Cassidy told § 87(2)(b) to slow things down and explained that he did not know § 87(2)(b) or whether he was carrying a gun and he needed him to move slowly for everyone's safety.

§ 87(2)(b) was compliant and moved slowly towards his identification and produced it for Sgt. Cassidy. Sgt. Cassidy denied that § 87(2)(b) was placed in handcuffs. Sgt. Cassidy frisked § 87(2)(b) to see whether he was armed solely because § 87(2)(b) had made a fast movement towards his waist. Sgt. Cassidy did not see any bulges in § 87(2)(b)'s clothing and there were no additional factors that led to the frisk. The frisk produced negative results for a weapon; however, § 87(2)(b) had been carrying a round speaker box. Sgt. Cassidy did not recall where the speaker box was located on his person, but stated that after the frisk § 87(2)(b) held the speaker box in his hands.

Sgt. Cassidy did not recall why § 87(2)(b) had been summonsed. When informed that § 87(2)(b) was summonsed for disorderly conduct, Sgt. Cassidy recalled that while § 87(2)(b) was compliant with Sgt. Cassidy, he tried to intimidate PO Corlette by yelling at her and disobeying her commands. Sgt. Cassidy could not describe any additional factors that led to § 87(2)(b) receiving a disorderly conduct summons. Sgt. Cassidy stated that § 87(2)(b) was the only civilian present during

the incident and no one gathered to watch the encounter. § 87(2)(f)

Event Summary D14011416884

The event summary for this incident indicates that at approximately 5:43 p.m., a male was stopped at 2938 Avenue W in Brooklyn. The radio call requested that officers investigate a possible crime and the suspected person was outside of the location (Encl. 16A-16C).

Status of Civil Proceedings

- As of September 2, 2014, § 87(2)(b) has not filed a notice of claim with the City of New York with regard to this incident, two months past the 90-day filing deadline. (Encl. 17A).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) is listed as the complainant and victim in two previous CCRB complaints (Encl. 7A):

- § 87(2)(b)

Subject Officer(s) CCRB History

- PO Corlette has been a member of the NYPD for 10 years and there are no substantiated CCRB allegations against her (Encl. 5A).
- Sgt. Cassidy has been a member of the NYPD for 16 years and there are no substantiated CCRB allegations against him (Encl. 6A).

Conclusion

Identification of Subject Officers

- During his CCRB statement, § 87(2)(b) identified PO Corlette and Sgt. Cassidy as the officers that stopped him in front of 2938 Avenue W in Brooklyn. Both officers acknowledged interacting with § 87(2)(b) § 87(2)(g).
- During his CCRB statement, § 87(2)(b) identified Sgt. Cassidy as the officer that pressed his forearm to the back of his neck and slammed him against a wall. § 87(2)(g).

- During his CCRB statement, § 87(2)(b) identified PO Corlette as the officer that frisked and searched him. PO Corlette also stated that she performed a frisk and search of § 87(2)(b) and she filled out a Stop, Question and Frisk Report in regards to the incident. § 87(2)(g)
- According to summons number § 87(2)(b) PO Corlette issued § 87(2)(b) the summons and Sgt. Cassidy was her supervisor on the date of the incident. § 87(2)(g)

Allegation A: Abuse of Authority- Sgt. Brendan Cassidy supervised the stop of § 87(2)(b)

Allegation B: Abuse of Authority- PO Tonica Corlette stopped § 87(2)(b)

It is undisputed that on January 14, 2014, in front of 2938 Avenue W in Brooklyn, PO Corlette and Sgt. Cassidy stopped § 87(2)(b). § 87(2)(b) stated that while he was listening to music through a portable speaker, the officers approached him and PO Corlette requested his identification and asked if he lived in the building he was standing in front of. § 87(2)(b) refused to provide identification and did not answer the officer's questions.

On the date of the incident, the officers stated that they received a report of a narcotics sale at 2938 Avenue W in Brooklyn. The event summary shows that the officers responded to the location in order to investigate a possible crime and the suspected person was outside of the location. There is no information in the event summary indicating a female caller or complainant. § 87(2)(f)

§ 87(2)(b) Sgt. Cassidy did not recall whether or not the officers were given a description of § 87(2)(b)

The officers then approached 2938 Avenue W and PO Corlette stated that there were approximately seven men standing in the lobby. All of the men with the exception of § 87(2)(b) exited the lobby and travelled further into the building. § 87(2)(b) then exited the building wearing the same colored jacket described by the unidentified woman. PO Corlette asked § 87(2)(b) for his identification in order to determine whether or not he lived at the location. § 87(2)(b) called PO Corlette a "bitch" and said that she could not find a man. He then walked away without complying with the request for his identification. Sgt. Cassidy stated that at no point did he hear PO Corlette curse at § 87(2)(b)

It has been recognized that when the information is imparted in a face to face encounter with the police, the informant's reliability is enhanced. "Even in instances where the informant is unidentified where the police have had face to face confrontation with the informant, and have had an opportunity to evaluate his or her reliability, such information, while not rising to the level of probable cause, may provide the reasonable suspicion necessary for a stop and frisk." People v. Heald, 41 Misc. 3d 1239 (A) (Encl. 1A-1D); People v. Dejesus, 169 AD 2d 521, 522 (1st Dept. 1991) (Encl. 1E)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegations A and B be closed as *unsubstantiated*.

Allegation C: Force- Sgt. Brendan Cassidy used physical force against § 87(2)(b)

§ 87(2)(b) alleged that upon refusing to give his identification to PO Corlette, Sgt. Cassidy threw him up against a brick wall. In his original CCRB interview, § 87(2)(b) stated that he attempted to take his wallet out of his pocket and held it high above his head, after which Sgt. Cassidy applied his forearm to the left side of § 87(2)(b)'s neck and slammed him face first into a brick wall. During a subsequent phone interview on January 13, 2015, § 87(2)(b) stated that Sgt. Cassidy's forearm was instead applied to the back of his neck towards the middle. § 87(2)(b) stated that his face then hit the wall. § 87(2)(b) stated that the officers believed that he had pulled out a gun. Sgt. Cassidy stated that a shooting happened earlier and he was trying to protect himself and his partner from the possibility of a gun. Sgt. Cassidy then continued to press § 87(2)(b) up against the wall and placed him in handcuffs.

Both officers testified that at some point, § 87(2)(b) reached towards something that he either had in his pants' pocket or waistband area without being commanded to do so. Sgt. Cassidy stated that he and PO Corlette instinctively grabbed § 87(2)(b)'s hands without any discussion and placed him against the scaffold to keep him still. Sgt. Cassidy told § 87(2)(b) to slow things down and explained that he did not know § 87(2)(b) or whether he was carrying a gun and he needed him to move slowly for everyone's safety. PO Corlette stated that her and Sgt. Cassidy each grabbed one of § 87(2)(b)'s arms to prevent him from removing anything from his pockets and placed him against the wall. PO Corlette stated that the officers restrained § 87(2)(b) for their safety. Sgt. Cassidy stated that he did not intend to injure § 87(2)(b) by putting him up against the scaffold. He also stated that § 87(2)(b) did not complain of any injuries and there were no visible injuries on § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that Allegation C be closed as *unsubstantiated*.

Allegation D: Force- Sgt. Brendan Cassidy restricted § 87(2)(b)'s breathing.

During his January 13, 2015 CCRB phone interview, § 87(2)(b) alleged that upon being placed against the scaffold by the officers, Sgt. Cassidy applied his forearm to his neck for approximately ten minutes. He stated that Sgt. Cassidy's forearm was specifically applied to the back of his neck towards the middle, and stated that he had trouble breathing but his breathing was not entirely restricted. § 87(2)(b) further stated that when he complained to Sgt. Cassidy that he could not breathe, Sgt. Cassidy took some pressure off of his neck.

As previously noted, in § 87(2)(b)'s original CCRB interview, he stated that Sgt. Cassidy applied his forearm to the left side of his neck. In that original CCRB interview, § 87(2)(b) made no statements indicating that his breathing was restricted in any way, and indicated his only injury received during this incident was a bruise to his chin after being pressed against the scaffold.

Sgt. Cassidy stated that a forearm was never applied to § 87(2)(b)'s neck and no other types of physical contact were made with his neck. Upon placing § 87(2)(b) against the scaffold, Sgt. Cassidy stated that the front of § 87(2)(b)'s body may have made contact with the scaffold. He did not specifically see where his body made contact because he was concentrating on § 87(2)(b)'s hands. Sgt. Cassidy did not observe § 87(2)(b)'s neck make contact with the scaffold and stated that he never complained about his breathing being restricted.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation D be closed as *unfounded*.

Allegation E: Abuse of Authority- PO Tonica Corlette frisked of § 87(2)(b)

Allegation F: Abuse of Authority- PO Tonica Corlette searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that upon refusing to provide his identification to the officers and being placed up against a brick wall, PO Corlette began to go through his pockets. As this occurred, § 87(2)(b) attempted to go into his pants' pocket in order to remove his wallet. Upon being pressed up against the wall further by Sgt. Cassidy, PO Corlette placed her hands inside of § 87(2)(b)'s pants' pockets and threw his items onto the ground.

PO Corlette stated that after § 87(2)(b) was placed against a wall for the officers' safety, she frisked § 87(2)(b) and felt a hard object under his jacket near his chest. PO Corlette indicated that prior to the frisk she did not see any bulges in § 87(2)(b)'s clothing because it was cold and his clothing was bulky; however, she feared that he could have been armed based on his combative demeanor and body movements. PO Corlette removed the bulge that was located near his chest and saw that it was a speaker box approximately two feet in length. She also removed a water or soda bottle from the opposite side of § 87(2)(b)'s jacket. Although Sgt. Cassidy indicated that he frisked § 87(2)(b) the investigation concluded that based upon PO Corlette and § 87(2)(b)'s corroborating statements and the fact that her signature is listed on the Stop, Question and Frisk Report, the preponderance of evidence indicates that PO Corlette in fact frisked § 87(2)(b). Sgt. Cassidy did not state that § 87(2)(b) was ever searched in regards to this incident and was unsure how a speaker box was located on him.

It is quite apparent to an experienced police officer, and indeed it may almost be considered common knowledge, that a handgun is often carried in the waistband. It is equally apparent that law-abiding persons do not normally step back while reaching to the rear of the waistband, with both hands, to where such a weapon might be carried. Although such action may be consistent with innocuous or innocent behavior, it would be unrealistic to require an officer to assume the risk that the defendant's conduct was in fact innocuous or innocent. Such an assumption would be at odds with his reasonably acquired belief that he was in danger and his constitutionally authorized action. It would, indeed, be absurd to suggest that a police officer has to await the glint of steel before he can act to preserve his safety. *People v. Benjamin*, 33 Misc. 3d 1220 A (Encl. 2A-2C), *People v. Diaz*, 51 N.Y. 2d 267 (1980) (Encl. 3A-3D). In instances where a visual observation or a limited protective frisk of the detainee reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject the detainee to a further and more intrusive search. *People v. Robinson*, 125 AD 2d 259 (Encl. 3E-3G).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations E and F be closed as *unsubstantiated*.

Allegation G: Abuse of Authority- PO Tonica Corlette issued a summons to § 87(2)(b)

Allegation H: Abuse of Authority- Sgt. Brendan Cassidy failed to supervise the issuance of a summons to § 87(2)(b)

It is undisputed that PO Corlette issued a summons for disorderly conduct during their interaction. § 87(2)(b) alleged that PO Corlette stated that she was going to issue § 87(2)(b) a summons for being disrespectful. PO Corlette ran to the police vehicle to get the summons with a smile on her face. § 87(2)(b) stated that he remained handcuffed as PO Corlette wrote the summons. § 87(2)(b) was then issued a summons for disorderly conduct. § 87(2)(b) admitted that during his interaction with PO Corlette, he was “hyped up” and called her a “stupid bitch” because she threw his items on the floor.

PO Corlette stated that during her interaction with § 87(2)(b) he called her a “bitch” and stated that she could not find a man. PO Corlette then requested § 87(2)(b) s identification because he cursing and acting belligerent. She stated that her reason for requesting his identification was to issue him a summons for disorderly conduct. Upon retrieving § 87(2)(b) s identification, PO Corlette wrote him a summons for disorderly conduct and gave it to § 87(2)(b)

At first, Sgt. Cassidy did not recall why § 87(2)(b) had been summonsed. When informed by a CCRB investigator that § 87(2)(b) was summonsed for disorderly conduct, Sgt. Cassidy recalled that while § 87(2)(b) was compliant with Sgt. Cassidy, he tried to intimidate PO Corlette by yelling at her and disobeying her commands. Sgt. Cassidy could not describe any additional factors that led to § 87(2)(b) receiving a disorderly conduct summons. At no point did any of the officers articulate that a crowd had gathered around the incident location and PO Corlette testified that she only interacted with the unidentified female. Sgt. Cassidy specifically stated that the only civilian present was in fact § 87(2)(b). According to summons number § 87(2)(b) § 87(2)(b) was found in violation of New York State Penal Law 240.20(3), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(a) 160.50

New York State Penal Law 240.20(3) (Encl. 4A-4V) explicitly states that a person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof in a public place the individual uses abusive or obscene language or makes an obscene gesture. “The statute applies to words and conduct reinforced by a culpable mental state to create a public disturbance, and does not circumscribe pure speech directed at an individual. Rather, it is directed at words and utterances coupled with an intent to create a risk of public disorder, which the State has the authority and responsibility to prohibit, prevent and punish.” *People v. Tichenor*, 1997 N.Y. LEXIS 754 (Encl. 4W-4A2).

§ 87(2)(g)

It is therefore recommended that Allegations G and H be closed as *substantiated*.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date